

Smt. Hardei v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 6224 of 2022 · **Writ disposed; liberty to file Para 6.8 objection with eight-week stay of coercive action.**

HEADNOTE

Without examining merits, the High Court disposed of a writ against a demand notice by granting the consumer liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing and staying coercive recovery for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Hardei filed a writ petition in the Allahabad High Court seeking certiorari to quash demand notice No. 675 dated 4 July 2020 issued by the power distribution corporation, and a mandamus directing the concerned respondent to decide her representation and objection dated 28 July 2020. Counsel for the distribution corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would then be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause-6.8-objection-as-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice is disposed of by granting the consumer liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the demand notice was disposed of without merits by relegating the consumer to a time-bound Para 6.8 objection, with a short stay of coercive recovery. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to submit an objection under Para 6.8 before the distribution corporation, to be decided in accordance with law after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 675 DATED 4.7.2020 AND OF THE PETITIONER'S REPRESENTATION/OBJECTION

Court expressly declined to express any opinion on merits. ¶ 1